

JUNE 28, 2023

1:30 P.M.

22CF13840	MIDLAND CREDIT MANAGEMENT. INC. vs. BASILIO GARCIA	On for Case Management Conference and OSC re: Failure to Obtain Default Judgment within 360 Days (CRC 3.740). A review of file shows that no service has been completed, OSC was sent to Plaintiff on June 27, 2022. Tentative ruling: The complaint will be dismissed without prejudice.
22CF13844	CAPITAL ONE BANK (USA), N.A. vs. REED B OVERSHINER	On for Case Management Conference and OSC re: Failure to Obtain Default Judgment within 360 Days (CRC 3.740). A review of file shows that service has been completed, an Answer has been filed, the OSC that was sent to Plaintiff on June 28, 2022 is vacated. Further Case Management and Trial Setting conference to October 11, 2023 at 1:30 pm in Dept. 4
23CV46596	MELISSA FLORY v. VESTRA LABS LLC	Defendant has filed a Notice of Removal to Federal District Court. No further action is required.
22CV46383	Butler v. Commercial Site Improvements	Defendant to file a properly noticed Demurrer (See ruling dated Feb. 24, 2023) or an Answer to Complaint. Further Case Management Conference set for October 11, 2023 at 1:30 pm in Dept. 4
21CV45655	Shannon O. Murphy Esq. SR. v Winco Holdings, Inc.	Tentative Ruling: There is no valid Proof of Service as to the Summons and Complaint. Regarding the Plaintiff's Memorandum filed 11-12-2021, it is not clear to the Court what Plaintiff is requesting. Plaintiff has been advised at past CMCs (2/16/2022, 6/8/2022, 9/22/2022, and 2/22/2023) to seek legal counsel. If Plaintiff is seeking to dismiss this case; a Request of Dismissal is to be filed. Finally, plaintiff is to update their mailing address with the court. The next CMC is scheduled for October 11, 2023 at 1:30 pm in Dept. 4 where the Court will consider setting OSC re: Dismissal pursuant to CCP §583.420 (a)(1).
22CF13839	Rocky Top Rentals, LLC v Arbour, et al	In reviewing court file, the plaintiff has been advised at two previous CMCs to file proof of service. A proof of service is to be filed by the next Case Management